Unit 3/B: cram sheet

Key ideas

1. **Marbury v. Madison** (1803) gave the Supreme Court **judicial review**: the power to declare a federal law unconstitutional.
2. **Peaceful coercion** failed: the **Embargo** (1807) hurt New England far more than Britain, and neither Britain nor France changed course.
3. The **War of 1812** began after Britain had already given in, and the **War Hawks** really wanted land (Canada, Florida), not just free seas.
4. Jefferson ran a **wise and frugal government** but used Hamilton's **broad construction** to buy **Louisiana** for $15 million.
5. **Burr** lost the New York governor's race, killed Hamilton in a duel, and was acquitted of treason because the Constitution's bar is so high.

The courts

Judiciary Act of 1801	1801	Lame-duck Federalists add judgeships (Midnight Judges), cut the Court from 6 to 5.
Pickering / Chase		Pickering (unfit) removed; Chase (politics) acquitted, so judges are not removed for politics.
Marbury v. Madison	1803	Marbury harmed, has a remedy, but the Court can't give it: Section 13 (1789) expanded original jurisdiction, so it's void. Judicial review.
John Marshall		Made the Court a true equal branch; strict on treason in Burr's trial.

Jefferson's presidency

Inaugural	1801	"We are all Republicans, we are all Federalists." Unity, no revenge.
Wise and frugal		Military cut, internal taxes repealed, Gallatin pays down the debt, Bank kept.
Louisiana Purchase	1803	Spain closes New Orleans; Haiti wrecks Napoleon; sent to buy New Orleans and West Florida, got everything for $15 million. Broad construction. Controls the Mississippi's mouth.
Lewis and Clark		Explore and map the purchase; contact with Native nations.
12th Amendment	1804	Separate votes for president and vice president; House picks from the top three.

Burr

Secession plot	1804	New England Federalists need New York; Burr loses the governor's race.
Duel	1804	Burr kills Hamilton at Weehawken; murder charges, later dropped.
Treason trial	1807	Western plot; acquitted. Treason needs two witnesses to the same overt act or a confession in open court.

Peaceful coercion

Impressment		British take sailors, citizens included, off American ships.
Non-Importation	1806	No British goods we can make or buy elsewhere.
Chesapeake affair	1807	Leopard fires on the unready Chesapeake; exposes U.S. weakness; Jefferson answers with the Embargo.
Embargo	1807	No trade with Europe; ruins New England; hurts the U.S. more than Britain.
Non-Intercourse	1809	Trade with all but Britain and France.
Macon's Bill No. 2	1810	Trade with both; cut off the other if one gives in. Napoleon tricks the U.S.

Road to war

Tecumseh		United Native confederacy; the Prophet is the religious side.
Tippecanoe	1811	Harrison attacks while Tecumseh is away; Tecumseh joins the British.

War Hawks		Clay and Calhoun; real goal Canada and Florida.
War declared	**1812**	Britain had already given in. South and West for war; Federalist Northeast against.

Watch out

- Marbury struck down Section 13 of the Judiciary Act of 1789, not the 1801 act. Marbury never got his job.
- Judicial review = the Court. Nullification (Kentucky and Virginia Resolutions) = the states.
- Pickering removed; Chase acquitted.
- Embargo = no trade with all of Europe. Non-Intercourse = everyone except Britain and France.
- Burr's treason charge = the western plot, not the duel.
- Tecumseh was away at Tippecanoe, and it was an American win.
- Expansion (Canada, Florida) was the War Hawks' goal, not one of Madison's declared reasons.
- Jefferson kept the Bank; Monroe and Livingston were sent for New Orleans and West Florida only.

Key: D.C. = District of Columbia; U.S. = United States; HMS = His Majesty's Ship (British navy); USS = United States Ship (American navy)